

On 13/05/2025

Multi-Jurisdiction Compliance Challenge – ShopGhana

This report analyzes data deletion and privacy rights requests under the Ghana Data Protection Act, GDPR, and CCPA/CPRA, while also reflecting good governance principles aligned with Rwanda's Data Protection and Privacy Law (Law No. 058/2021).

1. Compliance Response Matrix

Customer	Applicable Law	Legal Right Analysis	Company Obligations	Retention Allowed	Response Deadline
Abena (Accra, Ghana)	Ghana Data Protection Act, 2012 (Act 843)	Yes. Ghana's DPA gives data subjects the right to request deletion or cessation of processing where data is no longer necessary.	Verify identity, evaluate legal retention duties, delete unnecessary personal data, and confirm completion.	Tax, payment, and transaction records may be retained for legal/accounting obligations for several years.	Reasonable time without undue delay.
Lukas (Berlin, Germany)	GDPR Article 17	Yes. GDPR explicitly grants the 'Right to Erasure' where data is no longer needed or consent is withdrawn.	Erase personal data from active systems, notify processors/third parties, maintain only legally required records.	Invoice/tax records and fraud prevention logs may be retained under legal obligation exemptions.	1 month from request receipt.
Maria (Los Angeles, California)	CCPA / CPRA	Yes. California residents have deletion rights and the right to opt out of the sale/sharing	Pause data selling/sharing immediately, verify identity, evaluate dispute-related retention necessity.	Data connected to an active return dispute may temporarily be retained until dispute resolution.	45 days (extendable once by another 45 days).

		of personal data.			
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2. Customer A – Abena (Ghana)

Legal Right to Deletion: Under Ghana’s Data Protection Act, Abena has a legitimate right to request deletion where her personal data is no longer necessary for the purpose it was collected. Since there are no open disputes or ongoing contractual obligations, ShopGhana should generally comply.

ShopGhana’s Obligations: The company must verify her identity, review any legal obligations requiring retention, delete unnecessary personal information, and securely archive only legally required records.

Retention Justification: Financial transaction records, invoices, tax records, and anti-fraud logs may still be retained for statutory compliance purposes.

Response Timeline: The company should respond within a reasonable timeframe and communicate actions clearly and transparently.

3. Customer B – Lukas (Germany)

Legal Right to Erasure: Lukas has a strong legal right under GDPR Article 17 (‘Right to be Forgotten’). Since his order was completed and there are no disputes, ShopGhana must erase data unless an exemption applies.

Possible Exemptions: The company may retain limited records required for taxation, accounting, fraud prevention, or legal defense obligations.

Required Actions: ShopGhana must erase personal data from customer databases, marketing systems, analytics systems where possible, and notify any third-party processors handling the data.

Response Timeline and Penalties: GDPR requires a response within one month. Failure to comply may result in investigations, enforcement orders, and administrative fines that can reach up to €20 million or 4% of annual global turnover.

4. Customer C – Maria (California, USA)

Legal Rights: Maria has the right to request deletion and the right to opt out of the sale or sharing of personal information under CCPA/CPRA.

Deletion Request Limitation: Because there is an active return dispute, ShopGhana may temporarily retain relevant information necessary to resolve the dispute and defend against potential legal claims.

Stop Selling Requirement: The company must immediately stop selling or sharing Maria's personal information and update internal systems to reflect her opt-out preference.

Disclosure Obligations: ShopGhana must explain what information is retained, why it is retained, categories of third parties involved, and how long the retention is expected to continue.

5. Comparison Table

Element	Ghana DPA	GDPR	CCPA/CPRA
Right to Deletion Exists?	Yes, under fair processing and data subject rights	Yes, explicit under Article 17	Yes, consumer deletion rights
Exemptions/Conditions	Legal and financial retention obligations	Legal obligations, public interest, legal claims	Active disputes, security, legal compliance
Response Deadline	Reasonable timeframe	1 month	45 days (possible extension)
Penalties for Non-Compliance	Regulatory sanctions and reputational risk	Up to €20M or 4% of global turnover	Civil penalties and enforcement actions
Consent Requirements	Consent and lawful processing required	Freely given, informed, explicit consent	Notice and opt-out rights emphasized

6. Draft Response Language

Abena

Dear Abena,

We confirm receipt of your account deletion request. After verification, ShopGhana will delete or anonymize personal data that is no longer legally required. Certain financial records may be retained for compliance purposes. We will notify you once the process is completed.

Regards,
ShopGhana Privacy Team

Lukas

Dear Lukas,

We acknowledge your GDPR Article 17 erasure request. ShopGhana is processing your request and will erase personal data from our active systems except where retention is required by law. We will complete the process within the GDPR response period.

Regards,
ShopGhana Data Protection Office

Maria

Dear Maria,

We confirm receipt of your deletion and opt-out request. ShopGhana has stopped selling or sharing your personal information. However, some data connected to your active return dispute must be retained temporarily until the matter is resolved. We will provide additional details regarding retained categories of information.

Regards,
ShopGhana Privacy Compliance Team

7. Alignment with Rwanda Data Protection Principles

Although the primary laws applicable are Ghana DPA, GDPR, and CCPA/CPRA, ShopGhana should also align with broader African data governance standards such as Rwanda's Data Protection and Privacy Law (Law No. 058/2021). Rwanda's framework emphasizes lawful processing, transparency, purpose limitation, accountability, data minimization, and protection of data subject rights. These principles support consistent cross-border privacy governance for international e-commerce operations.